



Law Office of ANDREW H. GRIFFIN, III, APC

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March 17, 2025

ATTORNEY-CLIENT FEE AGREEMENT (Unlawful Detainer-Landlord)

Law Office of Andrew H. Griffin, III, APC (“Attorney”), Khiem Do Trustee of the Van Khiem Van Do trust (“Client”), hereby agree that Attorney will provide legal services to Client on the terms set forth below.

1. CONDITIONS

This Agreement will not take effect, and Attorney will have no obligation to provide legal services, until: (a) Client returns a signed copy of this Agreement; (b) Client pays the initial deposit called for under Paragraph 4; and (c) Attorney acknowledges acceptance of representation by counter-signing this Agreement and returning a fully executed copy to Client. Upon satisfaction of these conditions, this Agreement will be deemed to take effect as of March 17, 2025.

2. SCOPE OF SERVICES AND ATTORNEY’S DUTIES

Client hires Attorney to provide legal services in the following matter **Eviction of Lucy Berry from the residence located at 139 S. Ash St., Escondido, CA 92027 San Diego County** Residential Unlawful Detainer Action (Eviction). Attorney will provide those legal services reasonably required to represent Client. Attorney will take reasonable steps to keep Client informed of progress and to respond to Client’s inquiries. If a court action is filed, Attorney will represent Client through trial and post-trial motions. This Agreement does not cover representation on appeal or in collection proceedings after judgment or proceedings regarding renewal of a judgment. A separate written agreement for these services or services in any other matter not described above will be required. Attorney is representing Client only in the matter described above.

3. CLIENT’S DUTIES

Client agrees to be truthful with Attorney and not withhold information. Further Client agrees to cooperate, to keep Attorney informed of any information or developments which may come to Client’s attention, to abide by this Agreement, to pay Attorney’s bills on time, and to keep Attorney advised of Client’s address, telephone number and whereabouts. Client will assist Attorney by timely providing necessary information and documents. Client agrees to appear at all legal proceedings when Attorney deems it necessary, and generally to cooperate fully with Attorney in all matters related to the preparation and presentation of Client’s claims.

4. FLAT FEES

The cost and timetable for evicting tenants from Residential units in California depends upon the following:

1. The type of Notice and the service of the Notice.
2. The filing and service of the Unlawful Detainer (“UD”) Complaint.
3. The filing of a response or failure to respond to the Complaint.
4. The trial or default prove up.
5. Obtaining the writ of execution and sheriff’s eviction.

Stage I

Notice

Every Landlord must provide proper notice before a case is filed in court. Proper notice depends upon many factors. These factors include the alleged breach of a covenant or duty of the tenant and/or the reason that the Landlord seeks to regain possession of the property.

The time stated in a Notice, whether it's a 3-Day, 30-Day, 60-Day or 90-Day Notice, must completely run before the UD Complaint can be filed with the Court. If a case is filed untimely, the Landlord could lose the case and would have to begin again, starting with providing the proper notice.

*Notice Preparation \$595.00
*Notice Service by Personal Service \$100.00 Per Person
\$695.00 TOTAL FOR STAGE I

Stage II

Filing and Service of the Complaint

An Unlawful Detainer ("UD") Complaint can be filed with the Court once the appropriate notice has been served and the time has run. Once again, the pleading requirements are strict. The complaint must accurately and legally depict the allegations. The Landlord can lose a case if allegations are improperly made. The Complaint must be properly served. If personally served, the tenant has five (5) days to file an answer or response with the Court. If substituted service is achieved, the five (5) day period to respond is extended to fifteen (15) days.

*Electronic Filing \$250.00
*Document Preparation \$1,695.00
*Filing Fee (\$250.00, \$397.00, or \$450.00)
*\$250.00 (Rental damages up to \$10,000.00)
*\$397.00 (Limited Case Filing Fee-Rental damages \$10,000.00 to \$25,000.00)
*\$450.00 (Rental damages exceeding \$25,000.00)
* Service of Defendants by Personal Service \$100.00 Per Person
* Service of Unknown Occupants \$100.00
\$2,495.00 TOTAL FOR STAGE II (with two known defendants)

Stage III

Failure to Answer

If personally served, the tenant has to file a response with the Court within five (5) days. If the Tenant fails to answer or respond, the Landlord can file a request to enter default. Once the court enters a default, the tenant is prevented from objecting to the UD action unless permission is received from the court.

***Default of all Defendants and Unknown Defendants \$495.00**

Stage IV
Trial, Ex-parte hearing or Default Prove Up/Default on Stipulation (Declaration Regarding Default with Order for Possession and/or Money Judgment)

If an answer is filed, the landlord must request a trial date. The Court is required to schedule a trial date to be held within twenty (20) days of the written request. The Landlord is required to prove entitlement to possession and/or damages in trial or if a default has been entered against the tenant. The fee is a flat fee of \$1,385.00, which includes one court appearance that is a half day or less. Additional Court appearances will be \$850.00 for each appearance. If a stipulation is entered at trial and a default is alleged, a flat fee of \$250.00 is payable for the preparation and filing of the declaration of default.

Client also agrees to pay hourly fees for each set of discovery, including but not limited to, form interrogatories, request for production of documents, request for admissions and special interrogatories that may be required in the eviction matter. Client also agrees to pay hourly for the preparation a response to each set of discovery that may be propounded by the opposing party. Additionally, if the opposing party requests a jury trial client agrees to pay the sum of \$3,295.00 for pre-trial preparation, payable upon the receipt of a demand for jury trial, and \$2,495.00 per day for trial after the jury is selected.

If client fails to pay the fees required by this agreement client understands that attorney will not be required to send the Writ of Possession to the Sheriff's Department.

*Basic Trial \$1,385.00 (Half day or less)

*Default on Stipulation \$495.00

(Includes Declaration Regarding Default with Order for Possession and/or Money Judgment)

\$1,385.00 TOTAL FOR TRIAL STAGE IV

Stage V **Sheriff Lockout**

Once a Judgment is entered, either by default or by trial, a Writ of Possession must be prepared and approved by a clerk of the court. After the Writ is issued it must be sent to the Sheriff with a properly completed Sheriff's instructions. The Sheriff will then schedule a date for the lockout of the tenant.

*Writ Fee \$56.00

*Sheriff's Fee for Lockout \$220.00

*Attorney Fee \$495.00

\$771.00 TOTAL FOR SHERIFF LOCKOUT STAGE IV

5. LEGAL FEES AND BILLING PRACTICES

The Charge of **\$595.00 TOTAL FOR STAGE I** This flat fee does not include any fee for any other stage. The initial Deposit, as well as any future deposits, will be held in Attorney's Operating Account. Client authorizes Attorney to use that deposit to pay the fees and other charges. Client acknowledges that the deposit is not an estimate of total fees and costs to be charged by Attorney, but merely an advance.

6. ADDITIONAL RETAINER

If unanticipated services are needed (e.g. Discovery, Depositions, Demurrer, Motion to quash, Bankruptcy relief from stay actions, etc.), then Client agrees to deposit an ADDITIONAL RETAINER OF \$1,500.00 to be used and paid at Attorney's rates as set forth below for all time spent on Client's

matter by Attorney and Attorney's legal personnel. Current hourly rates for legal personnel are as follows:

Senior partners	\$495.00/hour
Associates	\$395.00/hour
Paralegals	\$195.00/hour
Law clerks	\$95.00/hour

The rates on this schedule are subject to change on 30 days written notice to Client. If Client declines to pay increased rates, Attorney will have the right to withdraw as attorney for Client if permitted under the Rules of Professional Conduct of the State Bar of California and/or applicable law.

The time charged will include, but is not limited to, the time Attorney spends on telephone calls, e-mails and other electronic communications relating to Client's matter, including calls and e-mails with Client, witnesses, opposing counsel, court personnel or other persons. The legal personnel assigned to Client's matter may confer among themselves about the matter, as required and appropriate. When they do confer, each person will charge for the time expended, as long as the work done is reasonably necessary and not duplicative. Likewise, if more than one of the legal personnel attends a meeting, court hearing or other proceeding, each will charge for the time spent.] Time is billed in minimum increments one-tenth (.1) of an hour. Attorney will charge for waiting time in court and elsewhere and for travel time, both local and out of town.

7. COSTS AND OTHER CHARGES

(a) Attorney will incur various costs and expenses in performing legal services under this Agreement. Client agrees to pay for all costs, disbursements and expenses in addition to the hourly fees. The costs and expenses commonly include, service of process charges, filing fees, court and deposition reporters' fees, translator/interpreter fees, jury fees, notary fees, deposition costs, long distance telephone charges, messenger and other delivery fees, postage, outside photocopying and other reproduction costs, travel costs including parking, mileage, transportation, meals and hotel costs, investigation expenses, consultants' fees, expert witness, professional, mediator, arbitrator and/or special master fees and other similar items. The foregoing external costs and expenses will be charged at Attorney's cost. Internal charges are billed at the following rates: (1) mileage – IRS Standard Mileage Rate; (2) in-house printing and photocopying – \$0.15 cents per page; (3) facsimile charges – \$0.25 cents per page; (4) postage at cost; and (5) computerized legal research at cost. (b) Out-of-town travel. Client agrees to pay transportation, meals, lodging and all other costs of any necessary out-of-town travel by Attorney and Attorney's personnel. Client will also be charged 50% of the hourly rates for the time legal personnel spend traveling. (c) Experts, Consultants and Investigators. To aid in the preparation or presentation of Client's case, it may become necessary to hire expert witnesses, consultants or investigators. Client agrees to pay such fees and charges. Attorney will select any expert witnesses, consultants or investigators to be hired, and Client will be informed of persons chosen and their charges. (d) Attorney will obtain Client's consent before incurring any costs in excess of \$1,500.00.

8. OTHER FEES AND COSTS

Client understands that if Client's case proceeds to court action or arbitration, the court may award attorney fees as well as some or all of the type of costs enumerated in Paragraph 6 above to the other party or parties. Payment of such attorney fees and costs shall be the sole responsibility of Client. Similarly, other parties may be required to pay some or all of the fees and costs incurred by the Client. Client acknowledges that any such determination does not in and of itself affect the amount of the fees and costs to be paid by Client to Attorney pursuant to this agreement.

9 BILLS

Attorney will send Client periodic bills for fees and costs incurred. Each bill will be payable within 10 days of its mailing date. Client may request a bill at intervals of no less than 30 days. If Client so requests, Attorney will provide one within 10 days. Bills for the fee portion of the bill will include the amount, rate, basis for calculation, or other method of determination of the Attorney's fees. Bills for the cost and expense portion of the bill will clearly identify the costs and expenses incurred and the amount of the costs and expenses. Client agrees to promptly review all bills rendered by Attorney and to promptly communicate any objections, questions, or concerns about their contents.

10. CLIENT APPROVAL NECESSARY FOR SETTLEMENT

Attorney will not make any settlement or compromise of any nature of any of Client's claims without Client's prior approval. Client retains the absolute right to accept or reject any settlement.

11. DISCHARGE AND WITHDRAWAL

Client may discharge Attorney at any time. Attorney may withdraw with Client's consent or for good cause or if permitted under the Rules of Professional Conduct of the State Bar of California and/or applicable law. Among the circumstances under which Attorney may withdraw are: (a) with the consent of Client; (b) Client's conduct renders it unreasonably difficult for the Attorney to carry out the employment effectively; and/or (c) Client fails to pay Attorney's fees or costs as required by this Agreement. Notwithstanding the discharge, Client will remain obligated to pay Attorney at the agreed rates for all services provided and to reimburse Attorney for all costs advanced.

12. CONCLUSION OF SERVICES

When Attorney's services conclude, whether by completing the services covered by this Agreement, or by discharge or withdrawal, all unpaid charges for fees or costs will be due and payable immediately. Client may have access to Client's case file at Attorney's office at any reasonable time. At the end of the engagement, Client may request the return of Client's case file. If Client has not requested the return of Client's file, and to the extent Attorney has not otherwise delivered it or disposed of it consistent with Client's directions, Attorney will retain the case file for a period of three years, after which Attorney is authorized by this agreement to have the case file destroyed. If Client would like Attorney to maintain Client's case file for more than five years after the conclusion of Attorney's services for Client on a given matter, a separate written agreement must be made between Attorney and Client, which may provide for Client to bear the cost of maintaining the file. In the event Client requests that Attorney transfer possession of Client's case file to Client or a third party, Attorney is authorized to retain copies of the case file at Attorney's expense. The case file includes Client papers and property as defined in Rule 3-700(D)(1) of the California Rules of Professional Conduct.

13. DISCLAIMER OF GUARANTEE AND ESTIMATES

Nothing in this Agreement and nothing in Attorney's statements to Client will be construed as a promise or guarantee about the outcome of the matter. Attorney makes no such promises or guarantees. Attorney's comments about the outcome of the matter are expressions of opinion only, are neither promises nor guarantees, and will not be construed as promises or guarantees. Any deposits made by Client, or estimate of fees given by Attorney, are not a representation of a flat fee and will not be a limitation on fees or a guarantee that fees and costs will not exceed the amount of the deposit or estimate. Actual fees may vary significantly from estimates given.

14. PROFESSIONAL LIABILITY INSURANCE DISCLOSURE

Pursuant to California Rule of Professional Conduct 3-410, I am informing you in writing that I have professional liability insurance.

15. NO TAX ADVICE

Attorney has not been retained to provide Client with any tax advice concerning any of the services described in paragraph 2. Any documents prepared by Attorney may have specific tax ramifications. To be sure Client understands and is certain of all the potential tax consequences, Client should consult with tax advisors regarding these matters.

16. ENTIRE AGREEMENT

This Agreement contains the entire agreement of the parties. No other agreement, statement, or promise made on or before the effective date of this Agreement will be binding on the parties.

17. SEVERABILITY IN EVENT OF PARTIAL INVALIDITY

If any provision of this Agreement is held in whole or in part to be unenforceable for any reason, the remainder of that provision and of the entire Agreement will be severable and remain in effect.

18. MODIFICATION BY SUBSEQUENT AGREEMENT

This Agreement may be modified by subsequent agreement of the parties only by an instrument in writing signed by both of them.

19. EFFECTIVE DATE

This Agreement will govern all legal services performed by Attorney on behalf of Client commencing with the date Attorney first performed services. The date at the beginning of this Agreement is for reference only. Even if this Agreement does not take effect, Client will be obligated to pay Attorney the reasonable value of any services Attorney may have performed for Client.

THE PARTIES HAVE READ AND UNDERSTOOD THE FOREGOING TERMS AND AGREE TO THEM AS OF THE DATE ATTORNEY FIRST PROVIDED SERVICES. IF MORE THAN ONE CLIENT SIGNS BELOW, EACH AGREES TO BE LIABLE, JOINTLY AND SEVERALLY, FOR ALL OBLIGATIONS UNDER THIS AGREEMENT. CLIENT WILL RECEIVE A FULLY EXECUTED COPY OF THIS AGREEMENT.

DATED: _____
(signature)

Address: _____

Telephone: _____ Email: _____

Law Office of Andrew H. Griffin, III, APC

By: _____ DATED: _____

Andrew H. Griffin, III, Attorney

Retainer Requested: \$595.00 TOTAL FOR STAGE I

ALL CHECKS RETURNED BY THE BANK ARE SUBJECT TO A \$55.00 SERVICE CHARGE